

BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C. Docket No. 25-15

STATEMENT OF MATERIAL FACTS

Respondent Wallenius Wilhelmsen Ocean AS (“WWO” or “Wallenius”), by and through its attorneys, Clyde & Co US LLP, pursuant to the revised Scheduling Order dated January 21, 2026 (Dkt. No. 13), the Order Addressing Filing Deficiencies and Extending Schedule dated April 20, 2026 (Dkt. No. 17) and the Initial Order dated August 5, 2025 (Dkt. No. 6), submits that no genuine dispute exists with respect to the following material facts:

1. Worldwide Nexus Logistics, LLC (“WNL” or “Complainant”) arranged ocean transportation services through WWO pursuant to Service Contract NASA23-003. CX126–CX148.

2. Three shipments were booked with WWO under booking numbers USSAV2348017, USSAV2348173, and USSAV2351444. CX62-64; CX81-84; CX106-109.

3. WWO issued Bills of Lading US2387246, US2387773, and US2387995 for the shipments (the “Bills of Lading”). CX520; CX522; CX524.

4. The shipments were loaded aboard the M/V MORNING LADY for voyage EC311. CX520; CX522; CX524.

5. The original manifest, dated January 1, 2024, did not include the shipments documented under the Bills of Lading. CX525–CX553.

6. The omission occurred due to an “involuntary mistake.” CX509.

7. During a customs inspection in Pisco, Peru, authorities determined that the three units were not included in the vessel’s cargo manifest and that “as a consequence of this, the Customs Authorities decided to seize the 03 mentioned units.” CX509.

8. Following the seizure, the cargo was discharged from the vessel and stored at the Port of Pisco, Peru. CX509.

9. In response to the seizure, WWO personnel and agents exchanged communications with respect to the manifest omission and seizure. CX509–CX510.

10. In those communications, WWO’s port agent stated: “We sincerely apologize for all inconveniences caused and please be sure that we bear all expenses involved and we are working and taking control so that it will not happen again.” CX510.

11. Following discovery of the omission, a corrected vessel manifest was issued on January 26, 2024, reflecting the previously omitted Bills of Lading. CX554–CX585.

12. WNL issued invoices and received payments for the transportation services it arranged in connection with the shipments. CX325–CX344.

13. Each booking confirmation expressly incorporates WWO’s standard Terms and Conditions (“WWO Terms”).

Q. And so three times on this booking confirmation Wallenius specifies that the booking is subject to Wallenius's terms and conditions, correct?

A. I see it, yes.

RX51.

14. Each bill of lading expressly incorporates the WWO Terms.

Q. And then here again on the right hand side of the bill of lading it says merchant agrees to the terms of carrier’s standard bill of lading which apply to this waybill, as well as such terms, conditions, limitations and general business terms and conditions as appearing at www.WallenusWilhelmsen.com, correct?

A. Correct.

RX52; CX520; CX522; CX524.

15. Complainant reviewed the WWO Terms before filing the subject dispute.

Q. ... you agree that these are the terms and conditions that are available at WalleniusWilhelmsen.com, correct?

A. Correct.

Q. Okay. And have you seen those terms and conditions before?

A. I have.

Q. Did you review these terms and conditions before filing this dispute?

A. I -- I -- I have, yes.

RX55.

16. Clause 17 of the WWO Terms states, “[w]here compulsorily applicable, this contract is governed by COGSA.” RX100.

17. Clause 18 of the WWO Terms states: “[i]f the Merchant has not declared a higher value on the face of this bill of lading and paid extra freight for the higher declaration, the Carrier’s liability is in any event limited to USD 500 per Package or for Goods not shipped in packages, per Customary Freight Unit.” RX100.

18. Clause 20 of the WWO Terms provides that “the Carrier shall be discharged from any liability whatsoever in respect of the Goods unless suit is brought within one year after their delivery or the date on which they should have been delivered.” RX100.

19. Clause 21 of the WWO Terms provides that the WWO Terms “shall apply in any action against the Carrier for any loss or damage whatsoever and howsoever occurring.” RX100.

20. Complainant did not negotiate any deviation from the WWO Terms.

Q. Did you negotiate any deviation from those terms and conditions with Wallenius?

A. No.

RX58.

21. Each bill of lading states that the total number of packages or units shipped was "one."

CX520; CX522; CX524.

22. No declared value was entered on any of the Bills of Lading.

CX520; CX522; CX524.

23. WNL did not declare any value for the shipments or pay any additional freight.

Q. ... you did not declare any value for any of the three boats, correct?

A. I did not declare it. It's not standard in shipping.

Q. Did you pay any additional freight for any of the three boats?

A. Any additional freight, no, I didn't.

RX58.

24. WNL did not own the cargo shipped under the Bills of Lading and never took title to any of the boats.

Q. Did Worldwide Logistics have any kind of ownership interest or right to the cargo?

A. No, not at the time of shipment.

Q. At any other time?

A. No.

RX45.

25. WNL did not have any security interest, lien, or property interest in the cargo.

Q. What about any kind of security interest or lien in the cargo?

A. None.

RX45.

26. WNL never received any written assignment or subrogation of rights from any cargo owner or consignee.

Q. Did you ever receive any writing from any of the cargo owners assigning their rights to Worldwide Logistics?

A. No.

Q. Did you ever receive any written assignment of rights from any consignee?

A. Written assignment, no.

RX65.

27. An initial cargo manifest for the subject voyage, dated January 2, 2024, does not list the three subject shipments. CX526-553.

28. A corrected cargo manifest, dated January 26, 2024, lists the three subject shipments. CX558; CX561.

29. WNL has no firsthand knowledge of any actions taken by Peruvian customs authorities and relies solely on information communicated by WWO.

Q. Do you have any firsthand knowledge of what the Peruvian customs did or why they did it?

A. Yes.

Q. You have firsthand knowledge—can you explain that?

A. Yes, I had a letter from Wallenius that was sent to us stating that there was an error in the manifest and that caused the seizure of the cargo.

Q. So the only knowledge you have about the seizure is what Wallenius told you?

A. Yes, that's correct.

RX69.

30. Complainant could not identify any regulation, policy, or procedure of WWO permitting incorrect manifesting of cargo.

Q. Are you aware of any policy of Wallenius stating that cargo may be manifested incorrectly?

A. No.

RX71.

31. WNL could not identify any prior or subsequent instance, other than the subject voyage, in which WWO failed to manifest cargo.

Q. Are you aware of any prior instances before this subject voyage of the Morning Lady where Wallenius failed to manifest cargo?

A. No.

Q. Are you aware of any subsequent incidents since this subject voyage of the Morning Lady where Wallenius failed to manifest cargo?

A. No.

RX71-72.

32. Complainant admitted that its claim is based solely on the three shipments on the same voyage that were initially excluded from the same manifest in error.

Q. So then your allegation for this claim is based solely on what happened to your three shipments, correct?

A. Yes.

RX77-78.

33. Complainant admitted that it has no evidence suggesting that WWO has a history of manifest errors.

Q. Do you have any evidence of any kind that would suggest that Wallenius has a history of making manifest errors?

A. No, I don't have any.

RX78.

34. Complainant failed to bring this claim, or any other claim, within one year after the subject shipments should have been delivered.

Q. So you filed this complaint on or around June/July 2025, right?

A. Correct.

Q. Okay. And that was more than one year after the cargo was discharged in Peru, correct?

A. Yes, about 18 months.

Q. And more than one year after it should have been delivered in Chile, correct?

A. Yes.

Q. Did you file any other action related to the shipment in any court or with any arbitral tribunal?

A. No.

Q. And you didn't obtain any extension of the time to file any suit?

A. No.

RX78.

35. WNL did suffer any quantifiable loss of any kind as a result of the subject shipments.

Q. Did Worldwide Logistics purchase any of the three boats or make any financial contribution to any of the three boats?

A. No.

Q. And did Worldwide Logistics reimburse any customer for the value of the boats?

A. No.

Q. Did Worldwide Logistics refund the freight or logistic charges to any of its customers related to these shipments?

A. No.

Q. Did Worldwide Logistics pay any charges in Chile relating to these shipments?

A. Yeah, no, it was — we just extended payment to Wallenius bill of lading for Wallenius bill of lading.

Q. So the only payment that you made with respect to these three shipments was the payment to Wallenius for the shipments?

A. Yes, that's correct.

Q. And did you collect payment from your customers Cargo Land and Andy of Miami for those amounts that you paid to Wallenius?

A. Yes, that's correct.

Q. So Worldwide Logistics didn't suffer any quantifiable out-of-pocket loss as a result of these shipments, is that correct?

A. That is correct.

Q. Do you have any documents showing that Worldwide Logistics lost money as a result of these shipments?

A. No, I don't have documents that will show you that.

Q. Do you have any documents showing that Worldwide lost customer contracts as a result of these lost shipments?

A. No documents.

Q. Do you have any documents showing that Worldwide lost revenue as a result of these subject shipments?

A. No, I don't have documents. My reports will only show that Andy of Miami is no longer shipping with me for the period that I have mentioned.

Q. And can you remind me when did Andy of Miami begin shipping with you again?

A. Just three or four months ago.

Q. Do you have any documents showing financial loss from reputational harm to Worldwide?

A. Do I have — I'm sorry, say —

Q. I'll repeat, yes. Do you have any documents which show any financial loss to Worldwide as a result of reputational harm from these shipments?

A. Yeah. No, I don't have any written documents because I don't believe that's how reputational damage is done on paper.

RX92-94.

Dated: New York, New York
June 1, 2026

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CERTIFICATE OF SERVICE

I certify that, on June 1, 2026, a true and correct copy of the foregoing Statement of Material Facts was filed via electronic mail with the Secretary of the Federal Maritime Commission and a copy was served via electronic mail on the following parties:

Jean C. Lopez

Jean.lopez@worldwidenexus.com

Managing Director and Owner, Worldwide Nexus Logistics, LLC

Dated: New York, New York
June 1, 2026

By: /s/ John R. Keough
John R. Keough